

# HOUSE . . . . . No. 1829

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***John J. Lawn, Jr.***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act eliminating the statute of limitation in civil child sexual abuse cases.

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PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:     | DATE ADDED:      |
|--------------------------|-----------------------|------------------|
| <i>John J. Lawn, Jr.</i> | <i>10th Middlesex</i> | <i>1/15/2025</i> |
| <i>Natalie M. Blais</i>  | <i>1st Franklin</i>   | <i>1/27/2025</i> |

# HOUSE . . . . . No. 1829

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By Representative Lawn of Watertown, a petition (accompanied by bill, House, No. 1829) of John J. Lawn, Jr., and Natalie M. Blais for legislation to eliminate the statute of limitation in civil child sexual abuse cases. The Judiciary.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 1614 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act eliminating the statute of limitation in civil child sexual abuse cases.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 4C of chapter 260 of the General Laws, as appearing in the 2020  
2   Official Edition, is hereby amended by striking out the first paragraph and inserting in place  
3   thereof the following paragraph:-

4           Actions of tort alleging the defendant sexually abused a minor may be commenced at any  
5   time after the acts alleged to have caused an injury or condition.

6           SECTION 2. Said chapter 260 is hereby amended by striking out section 4C1/2, as so  
7   appearing, and inserting in place thereof the following section:-

8           Section 4C½. An action of tort alleging that the defendant negligently supervised a  
9   person who sexually abused a minor or that the defendant's conduct caused or contributed to the

sexual abuse of a minor by another person may be commenced at any time after the acts alleged to have caused an injury or condition. For the purposes of this section, “sexual abuse” shall have the same meaning as in section 4C.

SECTION 3. Sections 4C and 4C1/2 shall apply regardless of when acts alleged to have caused an injury or condition to a minor shall have accrued and regardless of whether it may have lapsed or would otherwise be barred by time under any law of the commonwealth. In an action based on sexual abuse against a minor that would have been barred by time under any law of the commonwealth in effect before the effective date of this act, damages may be awarded against an entity that employed or supervised the person who allegedly committed the sexual abuse only if there is a finding of negligence on the part of the entity.